

Private Use of Internet Services and Electronic Mail (Email) at Hochschule Ravensburg-Weingarten - University of Applied Sciences

By decision of 10 January 2005 (file no. 1WS152/04), the Oberlandesgericht (*Higher Regional Court*) Karlsruhe ruled that government agencies and other public institutions (e.g. including universities), if they provide their staff or any third party with telecommunication systems not only for scientific or official purposes, act outside their official duties and thus must be deemed to be enterprises in terms of Section 206 of the German penal code (*StGB*).

If the university allows its members the use of its telecommunication systems for private or commercial purposes, it is obliged to maintain secrecy of telecommunication. The university will in such case assume the role of a telecommunication services provider and be subject to the provisions as laid down in the German Telecommunications Act (TKG). The university is not allowed to process person-related data neither those relating to the connection nor to the contents thereof, without or against the will of the service user, unless the data are the subject matter of the service to be rendered by the user. This implies that any unauthorized modification of e-mails, their filtering, suppression or knowledge by a third party (e.g. the computing center) may result in a breach of the secrecy of telecommunication carrying a penalty/ and carry a penalty.

However, in order to continue allowing the occasional private use of internet and e-mail services, it is necessary that users give their written consent to such private use being subject to the same protocol loggings, analysis options and security measures as the official one. For this reason, the enclosed establishment agreement governing the use of internet services and electronic mail (email) has been concluded for the university staff.

At its session of 4 December 2006, the Senate decided upon applying these regulations accordingly to all the members and associates of the university pursuant to sect. 9 German State law on universities and colleges (*Landeshochschulgesetz*).

If you wish to use the internet and email services also for private purposes, please sign the declaration of consent on the reverse and return it to us together with the other documents. Otherwise, it is assumed that you will use these services for your studies only.

You will find the wording of the above-mentioned establishment agreement under:
<https://www.rwu.de/hochschule/einrichtungen/studierenden-service>

Consent

I hereby consent to any protocol loggings and analysis options being governed by the "Establishment Agreement on the Use of Internet Services and Electronic Mail" (*Dienstvereinbarung über die Nutzung von Internet-Diensten und den Einsatz Elektronischer Post*) of 18 November 2005.

Student ID no. _____ or Application ID no. 355593

Berlin, Germany ; 02/02/2026
Place, Date



Signature